

NON-DISCLOSURE AGREEMENT

(NDA)

Full Stack Developer Intern

This Non-Disclosure Agreement ("Agreement") is entered into on **25-05-26**

BETWEEN:

DZ Infotech ("Company" or "Disclosing Party")

Registered Office: Bhavnagar, Gujarat, India

AND

Savani Miren Devendrabhai("Intern" or "Receiving Party")

Address: _____

RECITALS:

WHEREAS the Company is engaged in software development and provides construction management solutions under the brand name "Contrack";

WHEREAS the Intern will be undertaking an internship with the Company and will be exposed to confidential and proprietary information;

WHEREAS the Company desires to protect its confidential information and trade secrets;

NOW, THEREFORE, in consideration of the mutual covenants and agreements set forth herein, the parties agree as follows:

1. DEFINITION OF CONFIDENTIAL INFORMATION

"Confidential Information" means any and all information, whether disclosed orally, in writing, electronically, or by any other means, that relates to the business, operations, products, services, or activities of the Company, including but not limited to:

- a) **Source Code and Technical Information:** All source code, algorithms, software architecture, database schemas, API designs, technical specifications, system designs, development methodologies, and any other technical documentation related to Contrack or any other Company products.
- b) **Product Information:** Product designs, features, functionalities, roadmaps, development plans, user interface designs, wireframes, mockups, prototypes, and any information about current or future products.
- c) **Customer and User Data:** Customer information, user data, usage analytics, customer lists, contact information, project data, and any other data stored in the Company's systems.
- d) **Business Information:** Business strategies, marketing plans, sales strategies, pricing information, business models, revenue data, financial information, investor information, partnership agreements, and vendor relationships.
- e) **Client Information:** Names of clients, prospective clients, client requirements, contractual terms, service level agreements, and any communication with clients.
- f) **Trade Secrets:** Proprietary methods, processes, techniques, know-how, inventions, research and development activities, and any other information that constitutes a trade secret under applicable law.

- g) **Technical Infrastructure:** Firebase database structure, Firestore collections and documents, API endpoints, API keys, authentication tokens, access credentials, server configurations, cloud infrastructure details, and any other technical infrastructure information.
- h) **Internal Communications:** Any discussions, meetings, emails, chat messages, documents, presentations, or other communications within the Company.

2. NON-DISCLOSURE OBLIGATIONS

The Intern agrees and undertakes to:

- i) **Confidentiality:** Keep all Confidential Information strictly confidential and not disclose it to any third party without the prior written consent of the Company.
- j) **Limited Use:** Use the Confidential Information solely for the purpose of performing internship duties as assigned by the Company.
- k) **Protection:** Take all reasonable measures to protect the Confidential Information from unauthorized disclosure, access, or use.
- l) **No Reproduction:** Not copy, reproduce, modify, reverse-engineer, decompile, or create derivative works from any Confidential Information without express written authorization.
- m) **No Public Disclosure:** Not post, share, or discuss any Confidential Information on social media platforms, technical forums, blogs, or any other public platforms.
- n) **Secure Storage:** Store all Confidential Information securely using password protection where appropriate.
- o) **Return of Materials:** Upon termination of the internship or upon request, immediately return or destroy all Confidential Information.

3. PROHIBITION ON SHARING CODE AND TECHNICAL MATERIALS

The Intern specifically agrees NOT to:

- p) **Public Repositories:** Share, upload, or publish any source code, code snippets, or technical implementations on public repositories including GitHub, GitLab, Bitbucket, or any other code hosting platforms.
- q) **Technical Forums:** Post code snippets, technical problems, or implementation details on Stack Overflow, Reddit, Quora, or any other public forums without prior written permission.
- r) **Credentials and Access Keys:** Share, disclose, or expose API keys, database credentials, authentication tokens, Firebase configuration, or any other access credentials.
- s) **Screenshots and Documentation:** Share screenshots, screen recordings, technical documentation, UI designs, or any visual materials containing Confidential Information on public platforms.
- t) **Personal Projects:** Use Company code, designs, or any Confidential Information in personal projects, portfolio websites, or resume submissions without prior written permission.

4. EXCLUSIONS FROM CONFIDENTIAL INFORMATION

This Agreement does not apply to information that:

- u) **Public Domain:** Was publicly available at the time of disclosure or becomes publicly available through no breach of this Agreement.
- v) **Prior Knowledge:** Was already known to the Intern prior to disclosure by the Company.
- w) **Independent Development:** Is independently developed by the Intern without use of Confidential Information.
- x) **Legal Requirement:** Is required to be disclosed by law or valid court order, provided that the Intern gives the Company prompt written notice.

5. DURATION OF CONFIDENTIALITY OBLIGATIONS

This Agreement shall:

- y) Commence on the date first written above;
- z) Remain in full force and effect during the entire period of the internship;
- aa) Continue for a period of **two (2) years** after the termination or expiration of the internship;
- bb) Survive termination of the internship for any reason.

6. INTELLECTUAL PROPERTY ASSIGNMENT

The Intern agrees and acknowledges that:

- cc) **Company Ownership:** All work products, inventions, code, designs, documentation, and any other materials created by the Intern during the internship shall be the sole and exclusive property of the Company.
- dd) **Assignment of Rights:** The Intern hereby irrevocably assigns all rights, title, and interest in and to all Work Product to the Company, without any requirement for further compensation.
- ee) **Cooperation:** The Intern agrees to cooperate with the Company and execute any documents necessary to establish or enforce the Company's ownership rights.
- ff) **Waiver of Moral Rights:** The Intern hereby irrevocably waives all moral rights in the Work Product to the maximum extent permitted by applicable law.

7. REMEDIES AND ENFORCEMENT

The Intern acknowledges and agrees that:

- gg) **Irreparable Harm:** Any breach or threatened breach of this Agreement will cause irreparable harm to the Company for which monetary damages alone would be an inadequate remedy.
- hh) **Injunctive Relief:** The Company shall be entitled to seek injunctive relief, specific performance, and other equitable remedies in addition to any other remedies available at law.
- ii) **Monetary Damages:** The Company may seek monetary damages for any breach, including damages for lost profits, business opportunities, and harm to reputation.
- jj) **Legal Costs:** In the event of any breach, the Intern shall be liable for all costs incurred, including reasonable attorney's fees and court costs.

8. GENERAL PROVISIONS

8.1 Governing Law

This Agreement shall be governed by and construed in accordance with the laws of India.

8.2 Jurisdiction

Any disputes arising out of or relating to this Agreement shall be subject to the exclusive jurisdiction of the courts in Bhavnagar, Gujarat, India.

8.3 Entire Agreement

This Agreement, together with the Internship Offer Letter, constitutes the entire agreement between the parties with respect to the subject matter hereof.

8.4 Amendments

This Agreement may not be amended except by a written instrument signed by authorized representatives of both parties.

8.5 Survival

The obligations and restrictions set forth in this Agreement shall survive the termination or expiration of the internship.

9. ACKNOWLEDGMENT AND REPRESENTATIONS

The Intern hereby acknowledges, represents, and warrants that:

- kk) The Intern has carefully read and fully understands all the terms, conditions, and obligations set forth in this Agreement;
- ll) The Intern is entering into this Agreement freely, voluntarily, and without any duress or coercion;
- mm) The Intern fully understands the serious consequences of breaching this Agreement;
- nn) The Intern has the legal capacity and authority to enter into this Agreement.

IN WITNESS WHEREOF, the parties have executed this Non-Disclosure Agreement as of the date first written above.

FOR DZ INFOTECH (COMPANY):



Signature: _____

Name: Soumyarajsinh Zala

Designation: Co-Founder

Date: 25-05-26

INTERN (RECEIVING PARTY):

Signature: _____

Name: **Savani Miren Devendrabhai**

Role: Full Stack Developer Intern

Date: _____